
8:30 a.m. Law and Motion

ALVAREZ- HERNANDEZ VS. MENLOVE, ET AL.

CASE NUMBER: 25CV-0207463

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 17, 2026, to Plaintiff and Counsel for failure to appear at an August 10, 2026 hearing. No response to the OSC has been filed. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. The Court confirms today’s review hearing set for 9:00 a.m.

BLEAKLEY VS. AIRBNB, INC, ET AL.

CASE NUMBER: 26CV-0210657

Tentative Ruling on Motion for Order Nunc Pro Tunc to Set Filing Date: Plaintiff Michelle Bleakley moves for an Order *nunc pro tunc* setting (or amending) the filing date for the Complaint in this action as May 11, 2026 to correct a clerical error. The Court finds that the filing was improperly rejected by the clerk. Sufficient evidence has been presented of the attempt to file on May 11, 2026. “Courts have inherent power to enter judgments nunc pro tunc so as to relate back to the time when they should have been entered but will do so only to avoid injustice.” *Phillips v. Phillips* (1953) 41 Cal.2d 869, 875. The Motion is **GRANTED**. The proposed order will be executed. The clerk is directed to set the filing date of the Complaint in this matter to May 11, 2026.

DRIVER VS. ERETH

CASE NUMBER: 25CV-0209266

Tentative Ruling on Order to Show Cause Re Sanctions: An Order to Show Cause Re: Sanctions (“OSC”) issued on August 13, 2026, to Plaintiff and Counsel for failure to timely serve Defendant pursuant to CRC 3.110(b). No response has been filed. Plaintiff has taken no action on this matter since filing the Complaint on November 21, 2025. Sanctions will be imposed in the amount of \$250. The clerk is instructed to prepare a separate Order of Sanctions. Failure to appear today will result in the issuance of an OSC re Dismissal.

GAFFNEY VS. PRIME HEALTHCARE ASC - REDDING, LLC, ET AL.

CASE NUMBER: 23CV-0202050

This matter is on calendar for a hearing on compliance with the Court’s Order Granting Approval of PAGA Settlement dated April 28, 2026. A Declaration filed September 23, 2026 provides that settlement administration is not complete. Today's review hearing is continued to **Monday, December 14, 2026 at 9:00 a.m. in Department 64**. Plaintiff is ordered to file a Declaration regarding compliance no later than five court days prior to the future hearing date. No appearances are necessary on today's calendar.

HOLLOWELL VS. LITTLEPAGE, ET AL.

CASE NUMBER: 25CV-0206936

Tentative Ruling on Motion for Relief from Order: Plaintiff moves for relief from all prior orders imposing discovery sanctions pursuant to Code of Civil Procedure 473(b). No proof of service is on file. The Code of Civil Procedure section 1005 sets forth the requirements for providing written notice of all motions. The Court cannot reach the merits of a motion absent timely written notice to all parties. Therefore, Plaintiff’s Motion is **DENIED** without prejudice.